



Notification Waiver Determination

Airtree and ors (additional minority co-investors) – Advanced Navigation

Acquisition	Advanced Navigation Pty. Ltd (AdNav), certain shareholders of AdNav, and certain new investors, entered into a sale and subscription deed (SSD). Under the SSD, Airtree Ventures Opportunity Fund V Partnership and its affiliates (Airtree), National Reconstruction Fund Corporation (NRF), a number of co-investors, along with a variety of other investors propose to directly or indirectly (through a separate nominee vehicle or trust) acquire shares of AdNav and enter into a shareholders agreement (the Acquisition). Airtree applied for a notification waiver on behalf of the co-investors and in respect of the co-investors' acquisition of shares of AdNav.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 May 2026

Parties to the Acquisition	Airtree is a limited partnership that is managed by Airtree Ventures Fund V Manager Pty Ltd, an entity which forms part of Airtree Ventures, a venture capital firm based in Sydney, Australia. Airtree Ventures primarily focuses on early-stage investments in technology startups across Australia and New Zealand. The NRF is an Australian Government specialist investment vehicle, established in 2023 under the National Reconstruction Fund Corporation Act 2023. The NRF's investment function is to provide finance in the form of debt, equity and guarantees for projects in 7 priority areas of the Australian economy. The following parties are acquiring shares in AdNav as part of the Acquisition alongside Airtree and NRF (referred to as co-investors). • Australian Retirement Trust is one of Australia's largest superannuation funds, managing in the order of \$350 billion of retirement savings for more than 2.4 million members and has a diverse global portfolio. • Franklin Park Venture Capital Opportunity Fund II, L.P is a venture capital fund managed by Franklin Park, which is a US based investment manager and adviser that specialises in private equity, private debt and venture capital, primarily through fund-of-funds, co-investment vehicles and bespoke advisory mandates. • LGPE SEC S.C.Sp, Crown Growth Opportunities IV SCSp-RAIF, Crown Asia-Pacific Private Equity V Master SCSp and Crown Asia-Pacific Private Equity VI Alt S.C.Sp are global
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	investment firms and are part of the LGT Capital Partners Group. LGT Capital Partners are involved in managing capital on behalf of institutional investors, sovereign entities, insurers, endowments and foundations. Harvard Private Capital Realty, Inc is an investment entity associated with Harvard Management Company, a nonprofit, wholly owned subsidiary of Harvard University. Its activities are limited to managing and investing endowment assets across a diversified portfolio of asset classes. The target, AdNav, develops, manufactures and offers AI powered navigation solutions, primarily for defence primes.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - Airtree, NRF and the co-investors will have a relatively small interest in AdNav post-Acquisition - there is no horizontal overlap, and limited potential vertical relationships, between the co-investors and their connected entities and AdNav in the supply of AI powered navigation software in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act